

IN THE DISTRICT COURT OF CALDWELL COUNTY
STATE OF THORNFIELD
CIVIL DIVISION
COUNTY OF CALDWELL

SYNTHEX INDUSTRIAL PARTNERS, INC., ITS: Case No.: CV-2024-08847
a Thornfield corporation,

That BERTRAM H. LOCKWOOD and DOROTHY M. LOCKWOOD, husband and wife
Plaintiff, ("P"), for and in consideration of the sum of FOUR HUNDRED TWENTY THOUSAND
DOLLARS (\$420,000.00) in hand paid by FIDELITY MERIDIAN TRUST, a Thornfield
trust ("Grantee"), the receipt and sufficiency of which are hereby
acknowledged, do hereby GRANT, BARGAIN, SELL and CONVEY unto Grantee, and
NORWOOD FABRICATION GROUP LLC, that certain lot or parcel of land
a Delaware limited liability company, described as follows:
and GERALD P. NORWOOD, individually,

LEGAL DESCRIPTION:

Defendants.

Lot 14, Block 7, CEDARBROOK ESTATES, SECOND FILING, a subdivision in Caldwell
County, Thornfield, according to the Plat thereof recorded in Volume 82, Page 341.

COMPLAINT FOR BREACH OF CONTRACT, ID.
FRAUD, AND UNJUST ENRICHMENT

Street Address: 1407 Cedarbrook Lane, Caldwell City, TX 77031
Plaintiff Synthex Industrial Partners, Inc. ("Synthex" or "Plaintiff"), by and
through its undersigned counsel, Kavanaugh & Ashworth LLP, hereby files this
Complaint against Defendants Norwood Fabrication Group LLC ("Norwood") and
Gerald P. Norwood ("Norwood Individual") (collectively "Defendants"), and in
support thereof alleges as follows: dated September 12, 1901, recorded in
Volume 2, Page 88, Deed Records of Caldwell County.

PARTIES

- Whitfield to Carmichael: Elias Monroe Whitfield conveyed to Robert J.
1. Plaintiff Synthex Industrial Partners, Inc. is a corporation incorporated and
existing under the laws of the State of Thornfield, with its principal place
of business at 9900 Commerce Parkway, Caldwell City, TX 77045.
- Carmichael to Voss Development Corp.: Robert J. Carmichael and Edna L.
2. Defendant Norwood Fabrication Group LLC is a limited liability company
organised under the laws of the State of Delaware, registered to do business
in Thornfield, with its registered agent at 302 Industrial Loop, Caldwell
City, TX 77046.
- ment Corp. to Lockwood (Original): Voss Development Corporation
conveyed Lot 14, Block 7, Cedarbrook Estates Second Filing, to Harold G.
3. Defendant Gerald P. Norwood is an individual and the sole managing member of
Norwood Fabrication Group LLC, residing at 512 Ridgecrest Drive, Caldwell
City, TX 77048.

5. Lockwood (Original) to Lockwood (Current Grantors): Harold G. Lockwood
JURISDICTION AND VENUE H. Lockwood and Dorothy M. Lockwood by
Last Will and Testament, probated in Caldwell County Probate Court Case

- This Court has subject matter jurisdiction pursuant to Thornfield Civil
Practice Code Section 14.001, as the amount in controversy exceeds
\$75,000.00 exclusive of interest and costs.

ENCUMBRANCES AND EXCEPTIONS:

- Venue is proper in Caldwell County pursuant to Thornfield Civil Practice
Code Section 15.002(a)(1), as Defendants' principal place of business is
located in Caldwell County and the events giving rise to this action occurred
in Caldwell County.

in the original principal amount of \$185,000.00 (to be released at closing).
FACTUAL BACKGROUND along the western boundary of the property,
recorded in Volume 52, Page 17, Easement Records of Caldwell County.

- On or about January 15, 2023, Synthex and Norwood entered into a Manufacturing
Services Agreement ("MSA") under which Norwood agreed to fabricate and deliver
3,500 custom industrial valve assemblies to Synthex at a total contract price
of \$840,000.00, with delivery to occur in four equal quarterly instalments
beginning April 1, 2023. LD the above-described premises, together with all and singular
the appurtenances thereunto belonging or in anywise appertaining, to the only

- Synthex paid Norwood an initial deposit of \$210,000.00 on January 20, 2023,
representing 25% of the total contract price, as required
of the MSA.

RECEIVED
OCT 2024